

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

EVICTIION SUMMONS/RESIDENTIAL

CASE NUMBER: 2023-CC 4403

PLAINTIFF/PETITIONER	vs. DEFENDANT/RESPONDENT
COLONIAL MANOR MHC HOLDINGS, LLC	JAMES ALLEN KIRKENDALL and ANY UNKNOWN PARTY(s) IN POSSESSION

TO: **JAMES ALLEN KIRKENDALL**
900 - 9th Avenue East, Lot #17
Palmetto, Florida 34221

PLEASE READ CAREFULLY

You are being sued by COLONIAL MANOR MHC HOLDINGS, LLC, to require you to move out of the place where you are living for the reasons given in the attached complaint.

You are entitled to a trial to determine whether you can be required to move, but you **MUST** do ALL of the things listed below. **You must do them within (5) days (not including Saturday, Sunday, or any legal holiday) after the date these papers were given to you or to a person who lives with you or were posted at your home.**

THE THINGS YOU MUST DO ARE AS FOLLOWS:

- (1) Write down the reason(s) why you think you should not be forced to move. The written reasons(s) must be given to the clerk of the Court at the Manatee County Courthouse, Post Office Box 25400, Bradenton, Florida, 34206.
- (2) Mail or give a copy of your written reason(s) to:

William C. Price, III, Esquire
WILLIAM C. PRICE, III, P.A.
522 Twelfth Street West
Bradenton, Florida 34205
Telephone: (941) 747-8001
Fax: (941) 747-3730
Primary E-Mail: Pleadings@wepricelaw.com
Attorney for Plaintiff

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- (3) Pay to the clerk of court the amount of rent that the attached complaint claims to be due and any rent that becomes due until the lawsuit is over. If you believe that the amount claimed in the complaint is incorrect, you should file with the clerk of the court a motion to have the court determine the amount to be paid. If you file a motion, you must attached to the motion any documents supporting your position and mail or give a copy of the motion to the Plaintiff/Plaintiff's Attorney.
- (4) If you file a motion to have the court determine the amount of rent to be paid to the clerk of the court, you must immediately contact the office of the judge to whom the case is assigned to schedule a hearing to decide what amount should be paid to the clerk of the court while the lawsuit is pending.

IF YOU DO NOT DO ALL OF THE THINGS SPECIFIED ABOVE WITHIN 5 WORKING DAYS AFTER THE DATE THAT THESE PAPERS WERE GIVEN TO YOU OR TO A PERSON WHO LIVES WITH YOU OR WERE POSTED AT YOUR HOME, YOU MAY BE EVICTED WITHOUT A HEARING OR FURTHER NOTICE.

- (5) If the attached complaint also contains a claim for money damages (such as unpaid rent), you must respond to that claim separately. You must write down the reasons why you believe that you do not owe the money claimed. The written reasons must be given to the clerk of the court at the address specified in paragraph (1) above, and you must mail or give a copy of your written reasons to the Plaintiff/Plaintiff's Attorney at the address specified in paragraph (2) above. This must be done within 20 days after the date these papers were given to you or to a person who lives with you or were posted at your home. This obligation is separate from the requirement of answering the claim for eviction within 5 working days after these papers were given to you or to a person who lives with you or were posted at your home.

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THE STATE OF FLORIDA:

To Each Sheriff of the State: You are commanded to serve this summons and a copy of the complaint in this lawsuit on the above named defendant.

DATED on JULY 28, 2023.

ANGELINA "ANGEL" COLONNESO
Manatee County Clerk of Courts and Comptroller

By:



R. Johnston

Deputy Clerk

NOTICE: If you are a person with a disability who needs any accommodation in order to participate in this proceeding, you are entitled, at no cost to you, to the provision of certain assistance. Please contact the Manatee County Jury Office, Post Office Box 25400, Bradenton, Florida, 34206, (941) 741-4062, at least seven (7) days before your scheduled court appearance, or immediately upon receiving this notification if the time before the scheduled appearance is less than seven (7) days; if you are hearing or voice impaired, call 711.

Si usted es una persona con una incapacidad que necesita cualquier acomodacion en orden de participar en el procedimiento, Usted esta intitulado, a no costo suyo, la provision de cierta ayuda. Favor de contactar al Manatee County Jury Office, Post Office Box 25400, Bradenton, Florida, 34206 ((41) 741-4062, dentro de siete dias laborables antes de su audiencia tribunal or imediante mente al recibir esta notificacion sisu audiencia tribunal es menos de siete dias: si usted tiene una incapacidad de oir o hablar llame al 711.

If you cannot afford an attorney, contact Gulfcoast Legal Services at (941) 746-6151 or www.gulfcoastlegal.org, or Legal Aid of Manasota at (941) 747-1628 or www.legalaidofmanasota.org. If you do not qualify for free legal assistance or do not know an attorney, you may call an attorney referral service (listed in the telephone book) or contact the Florida Bar Lawyer Referral Service at (800) 342-8011.